

TENTATIVE RULINGS

DEPT C28

Judge Thomas S. McConville

September 18, 2023 at 2:00 p.m.

Court Reporters: Official court reporters (i.e., court reporters employed by the Court) are **NOT** typically provided for law and motion matters in this department. If a party desires a record of a law and motion proceeding, it will be the party's responsibility to provide a court reporter. Parties must comply with the Court's policy on the use of privately retained court reporters which can be found at:

- [Civil Court Reporter Pooling](#); and
- For additional information, please see the court's website at [Court Reporter Interpreter Services](#) for additional information regarding the availability of court reporters.

Tentative rulings: The court endeavors to post tentative rulings on the court's website in the morning, prior to the afternoon hearing. However, ongoing proceedings such as jury trials may prevent posting by that time. Tentative rulings may not be posted in every case. Please do not call the department for tentative rulings if tentative rulings have not been posted. The court will not entertain a request to continue a hearing or the filing of further documents once a tentative ruling has been posted.

Submitting on tentative rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5228. Please do not call the department unless all parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the court, the tentative ruling shall become the court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the court's signature if appropriate under Cal. R. Ct. 3.1312.

Non-appearances: If nobody appears for the hearing and the court has not been notified that all parties submit on the tentative ruling, the court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

Appearances: Department C28 conducts non-evidentiary proceedings, such as law and motion hearings, remotely by Zoom videoconference pursuant to Code of Civil Procedure section 367.75 and Orange County Local Rule 375. Any party or attorney, however, may appear in person by coming to Department C28 at the Central Justice Center, located at 700 Civic Center Drive West in Santa Ana, California. All counsel and self-represented parties appearing in-person must check in with the courtroom clerk or courtroom attendant before the designated hearing time.

All counsel and self-represented parties appearing remotely must check-in online through the court's civil video appearance website at <https://www.occourts.org/media-relations/civil.html> before the designated hearing time. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Participants will initially be directed to a virtual waiting room pending the start of their specific video hearing. Check-in instructions and instructional video are available at <https://www.occourts.org/media-relations/aci.html>. The Court's "Appearance Procedures and Information--Civil Unlimited and Complex" and "Guidelines for Remote Appearances" also are available at <https://www.occourts.org/media-relations/aci.html>. Those procedures and guidelines will be strictly enforced.

Public Access: The courtroom remains open for all evidentiary and non-evidentiary proceedings. Members of the media or public may obtain access to law and motion hearings in this department by either coming to the department at the designated hearing time or contacting the courtroom clerk at (657) 622-5228 to obtain login information. For remote appearances by the media or public, please contact the courtroom clerk 24 hours in advance so as not to interrupt the hearings.

Arguments: The court will allow arguments on the pending motions, but those arguments must not repeat arguments previously made in each parties' applicable briefs.

No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and Orange County Superior Court rule 180.

#	Case Name	Tentative
50.	Aslan v. Orange County Digestive Care, Inc. 2021-01229801	Defendants Duke Nguyen, M.D. and Orange County Digestive Care, Inc.'s motion for summary judgment, or in the alternative, summary adjudication as to the claims of plaintiff Hunkar Aslan is GRANTED in its entirety. (Code Civ. Proc., § 437c [authorizing motion].) A defendant seeking summary judgment bears the burden of persuasion and burden of proof by a preponderance of the evidence to negate the plaintiff's claim. It may do this by demonstrating the claim has no merit, that plaintiff cannot prove an element of the claim, or that it has a complete defense entitling it to judgment as a matter of law. (Code Civ. Proc., § 437c, subd. (p)(2); <i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal.4th 826, 850-851 (<i>Aguilar</i>).) If the defendant fails to meet this initial burden, the plaintiff need not oppose the motion and the motion must be denied. (<i>Binder v. Aetna Life Ins. Co.</i> (1999) 75 Cal.App.4th 832, 840.) If the defendant meets this initial burden, however, the burden shifts to the plaintiff to produce evidence demonstrating the existence of a triable issue of material fact. (Code Civ. Proc., § 437c, subd. (p)(2); <i>Aguilar, supra</i>, 25 Cal.4th at pp. 850-851.) The moving party's papers are to be strictly construed, while the opposing party's papers are to be liberally construed. (<i>Committee to Save Beverly Highland Homes Ass'n v. Beverly Highland</i> (2001) 92 Cal.App.4th 1247, 1260.) A court may not make credibility determinations or weigh the evidence on a motion for summary judgment or adjudication, and all evidentiary conflicts are to be resolved against the moving party. (<i>McCabe v. American Honda Motor Corp.</i> (2002) 100 Cal.App.4th 1111, 1119.)

The elements to a claim for medical negligence are (1) a duty to use such skill, prudence, and diligence as other members of the profession commonly possess and exercise, (2) a breach of the duty, (3) a proximate causal connection between the negligent conduct and the injury, and (4) resulting loss or damage. (*Johnson v. Superior Court* (2006) 143 Cal.App.4th 297, 305 (*Johnson*).)

"Because the standard of care in a medical malpractice case is a matter 'peculiarly within the knowledge of experts' [citation], expert testimony is required to 'prove or disprove that the defendant performed in accordance with the standard of care' unless the negligence is obvious to a layperson. [*Kelley v. Trunk* (1998) 66 Cal.App.4th 519, 523.]" (*Johnson, supra*, 143 Cal.App.4th at p. 305.)

Expert testimony is also required to demonstrate causation to a reasonable medical probability. (*Jones v. Ortho Pharmaceutical Corp.* (1985) 163 Cal.App.3d 396, 402 (*Jones*); accord, *Chakalis v. Elevator Solutions, Inc.* (2012) 205 Cal.App.4th 1557, 1572.) "Mere possibility alone is insufficient to establish a prima facie case. [Citations.] That there is a distinction between a reasonable medical 'probability' and a medical 'possibility' needs little discussion. There can be many possible 'causes,' indeed, an infinite number of circumstances which can produce an injury or disease. A possible cause only becomes 'probable' when, in the absence of other reasonable causal explanations, it becomes more likely than not that the injury was a result of its action." (*Jones*, at pp. 402-403.)

Defendants have met their initial burden showing they have a complete defense to plaintiff's claims via the expert testimony of Lynn Shapiro Connolly, M.D (exhibit L) and declaration of Michael Van Scoy-Mosher (Exhibit M). These experts opine defendants did not breach the standard of care in the industry and was not the proximate cause of plaintiff's injuries. See

		<i>Exhibits L and M attached to the moving papers. (ROA 116)</i> As plaintiff has not filed an opposition to this motion, plaintiff has not met his now shifted burden raising a triable issue of fact as to the standard of care and causation issues. Therefore, summary judgment is GRANTED in favor of moving defendants. The court sets the matter for a status conference on October 27, 2023 at 9:00 a.m. in C-28 to discuss plaintiff's complaint as it relates to Does 1-50. Should plaintiff fail to appear, the court shall dismiss the complaint. Moving defendants shall give notice.
51.	Route Four LLC v. Burkhart 2020-01129185	Defendants Luxx Lighting, Inc.'s and Athena Products, Inc.'s Motion For Summary Judgment and/or Summary Adjudication is DENIED. (See Code Civ. Proc. § 437c.) Defendant met its initial evidentiary burden as to Noticed Issue No. 1 (related to the 7th and 8th causes of action ("COA") intentional interference with contract). The burden then shifts to the plaintiff. Plaintiff met its shifted evidentiary burden to show the existence of one or more triable issues of material fact as to Noticed Issue No. 1. (See Code Civ. Proc., § 437c, subd. (p)(2) [burden]; <i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal.4th 826, 851 [burden].) A triable issue of material fact exists as to undisputed material fact ("UMF") 25 as to whether Falcon purchased lights from Luxx in 2019. This triable issue

	is created by Plaintiff's Exh. I, Nichols as PMK Depo., 139:1-25.) Triable Issues of material fact exist as to UMFs 29, 35, 38, 41, 47, 50, 56, 60, & 64 as to whether plaintiff could provide any information regarding the terms of plaintiff's contracts with Jungle Boys, Gentleman's Cut, ASPYR/Zenco, Phat Panda, Falcon Brands and Elevated. These triable issues are created by the Alston declaration paragraph 30, Exh. J-N & W-CC. Defendants failed to meet their initial evidentiary burden as to Noticed Issues No. 2 (related to 11th COA alleging interference with the asset purchase agreement) & No. 3 (related to aiding and abetting a breach of fiduciary duty). As it relates to Issue No. 2, defendants argue that plaintiff alleges in the complaint that defendants Luxx and Athena are agents of Burkhart and Rails, and agents, like principals cannot be charged with wrongfully interfering with contracts to which they are a party. (See <i>Caliber Paving Co., Inc. v. Rexford Indus. Realty & Mgmt., Inc.</i> (2020) 54 Cal.App.5th 175, 177-78.) According to plaintiff, the allegations in the complaint constitute "judicial admissions," and are conclusive concessions. See <i>CytoDyn of New Mexico, Inc. v. Amerimmune Pharmaceuticals, Inc.</i> (2008) 160 Cal.App.4th 288, 299 fn. 9. Plaintiff's opposition cites to <i>Barsegian v. Kessler & Kessler</i> (2013) 215 Cal.App.4th 446, 571-73. The reasoning in <i>Barsegian</i> is persuasive. While the opinion dismisses the agency allegations in the complaint as "boilerplate," the court does address the fact that a judicial admission is binding on both parties. In this case, defendants contested the existence of agency in their answer. Defendants cannot have judicial admissions adhere to one party but not the other. See <i>Thomas v. Westlake</i> (2012) 204 Cal.App.4th 605, 615. And the <i>CytoDyn of New Mexico</i> case is distinguishable because it involved a motion to compel arbitration by a third party who was not a party to the arbitration clause and the possibility
--	--

	of contradictory rulings. Arbitration agreements have been treated differently by the courts when compared to other types of contracts. As defendants cannot defeat each theory under noticed issue No. 2, the motion fails. As it relates to Issue No. 3, defendants rely on UMF 78-79, which (in summary) asserts a fiduciary relationship arising from a contract. Whether a fiduciary relationship exists as a result of a contract is a question of fact. <i>Magnecomp Corp. v. Athene Co.</i> (1989) 209 Cal.App.3d 526, 536-537. The court rules as follows on plaintiff's evidentiary objections: Declaration of Ivan Van Ortwick. 1-5 Sustained, sham declaration 6-7 Overruled 8. Sustained, sham declaration 9. Overruled 10. Sustained, lack of foundation 11-15 Overruled Declaration of Amberlee Rails. 5-10 Overruled 11. Sustained, hearsay 12. Overruled 13-14 Overruled 16. Overruled
--	---

		17-19 Sustained, hearsay 20-26 Overruled Declaration of Natalie Hardcastle. 2-7 Overruled Declaration of Aries Malone. 2-5 Overruled Declaration of Brian Carlevato. 2-5 Overruled 8-12 Overruled Declaration of Robert McKinley. 2 Overruled 2 Overruled 3-4 Overruled 6 Sustained, hearsay 7 Overruled Declaration of Ryan Carson. 2-4 Overruled Declaration of Aries Malone.
--	--	---

		2-3 Overruled 4 Sustained, sham declaration 5 Overruled Declaration of Seema Sudhir. 2 Sustained, lack of foundation 3-7 Overruled Declaration of Ronnie Lopez. 3-4 Overruled Declaration of Etan Woods. 2-7 Overruled The court rules as follows on defendants' evidentiary objections: Declaration of Kenneth Alston. 18. Sustained, sham declaration 20 Sustained, lack of foundation 21 Sustained, lack of foundation 22 Sustained, lack of foundation 23-24 Sustained, lack of foundation 25 Sustained, sham declaration 26 Sustained, lack of foundation 27 Sustained, hearsay 29 Sustained, lack of foundation
--	--	--

		30 Overruled 31 Overruled. As a reply separate statement is not authorized in the summary judgment statute or Rules of Court, the court declines to consider the same. The court also declined to consider the supplemental declaration filed with the reply. (See <i>Jay v. Mahaffey</i> (2013) 218 Cal.App.4th 1522, 1537-38). Plaintiff's request to continue the hearing is denied. Plaintiff's supporting evidence fails to establish the specific facts plaintiff expects to obtain, an estimate of the time necessary to obtain the information, and the specific steps or procedures the opposing party intends to utilize to obtain such evidence. (See <i>Granadino v. Wells Fargo Bank, N.A.</i> (2015) 236 Cal.App.4th 411, 420.) Defendants shall give notice.
52.	State Farm General Insurance Company v. Alai 2019-01065145	Cross-defendants James M. Baratta, Milton V. Fajardo, Michael Genovese, and Grant Genovese Baratta LLP's motion to strike cross-complainants 12712, LLC and TSC, Inc.'s operative first amended cross-complaint is GRANTED, without leave to amend. (See Code Civ. Proc., §§ 436, subd. (b), 428.10; see also <i>id.</i>, § 428.20.) A cross-complaint must be brought, at least in part, by a party "<i>against whom</i> a cause of action has been asserted in a complaint or cross-complaint." (See Code Civ. Proc., §§ 428.10, 428.20.) Neither 12712 LLC nor TSC, Inc., the only two cross-complainants to the subject cross-complaint, is "[a] party against whom a cause of action has been

		asserted in a complaint or cross-complaint” in this action. (Code Civ. Proc., § 428.10; see ROA Nos. 171 [first amended complaint], 316 [Alai & TSC’s third amended cross-complaint]; see also ROA No. 471 [12712 LLC & TSC, Inc.’s operative first amended cross-complaint].) Cross-complainants’ request for sanctions is DENIED. Moving parties shall give notice.
53.	Chameleon EBikes, LLC v. RNR Group, Inc. 2023-01301129	Motion No. 1. Demurrer. Defendant Randy Morton’s Demurrer to Plaintiff’s Complaint is OVERRULED. (See Code Civ. Proc. § 430.10.) Defendant’s motion lacks a separate demurrer. To demur to a complaint, the demurrer must include a separate document called a Demurrer that identifies the party and pleading that is the subject of the demurrer, the grounds for the demurrer, and which causes of action are challenged and the grounds for the challenge. (See Calif. Rules Court, rule 1320 (a), (c); Code Civ. Proc. § 430.60.) As defendant has failed to file a demurrer, the court construes defendant’s motion as a demurrer on the grounds of uncertainty and a general demurrer. The demurrer on the grounds of uncertainty is overruled. The complaint is not so poorly drafted that Defendant cannot reasonably respond. (See <i>Khoury v. Maly’s of California Inc.</i> (1993) 14 Cal.App.4th 612, 616.) The general demurrer as to the 1st and 2nd causes of action also fails. The complaint alleges facts sufficient

	to state a cause of action for conversion and violation of Penal Code section 496. Defendant argues that service or process was inappropriate. When considering a demurrer, the court is limited to the allegations in the complaint, and anything that might be subject to judicial notice. (See <i>Blank v. Kirwan</i> (1985) 39 Cal.3d 311, 318.) The facts showing any failure related to service are not on the face of the complaint, nor are they the subject of judicial notice. Thus defendant's arguments about defective service are not grounds to sustain the demurrer. Additionally, by filing this demurrer, defendant Morton made a general appearance in this action, precluding an attack upon service. (See Code Civ. Proc. § 1014; <i>Jarvis v Jarvis</i> (2019) 33 Cal.App.5th 113, 127, 244 CR3d 722 [defendant waives any defects in service by filing demurrer].) Defendant's demurrer includes a declaration that addresses the merits of the complaint. Because a declaration is extrinsic evidence, it is not properly before the court when ruling on a demurrer. (<i>Ion Equipment Corp v. Nelson</i> (1980) 110 Cal.App.3d 868, 881.) The court declines to consider defendant's declaration, any attached exhibits, the verification of the reply brief, or any additional arguments raised in the declaration. Defendant is ordered to file an answer, if any, to the complaint within ten days. The <i>proposed</i> answer filed on 06/20/23 (ROA 63) is not acceptable because Mr. Morton is not licensed to practice law, and cannot represent the entity co-defendant in this action. Motion No. 2. Motion to Strike. Defendant Randy Morton's Motion to Strike is DENIED on the grounds stated above. Additionally, the action is not barred by the statute of limitations because the complaint was filed within
--	--

		months of defendant's wrongful conduct. (Compl. ¶¶ 29-33.) Defendant may wish to consider retaining legal counsel to represent him and his co-defendant in this action. Plaintiff shall give notice.
54.	Sanchez v. Nissan North America, Inc. 2021-01213189	Plaintiff Jose J. Sanchez' motion for reconsideration of this court's 2-6-23 order compelling arbitration is GRANTED. The court hereby reconsiders its prior 2-6-23 order compelling arbitration on its own motion, and now denies defendant Nissan North America, Inc.'s motion to compel arbitration. (Code Civ. Proc., § 1008 [authorizing reconsideration]; <i>Le Francois v. Goel</i> (2005) 35 Cal. 4th 1094, 1108 [court's power to reconsider interim rulings]; <i>Pinela v. Neiman Marcus Group, Inc.</i> (2015) 238 Cal.App.4th 227, 237 [court's power to reconsider ruling compelling arbitration].) While the instant motion for reconsideration was filed more than 10 days after the 2-6-23 order (Code Civ. Proc., § 1008, subd. (a)), the court has the power to reconsider its interim decisions, even if triggered by an improper motion. (<i>Le Francois</i> at 1108.) Further: "If a court at any time determines that there has been a change of law that warrants it to reconsider a prior order it entered, it may do so on its own motion and enter a different order." (Code Civ. Proc., § 1008, subd. (c).) Accordingly, because this court may reconsider its previous orders at any time (<i>Le Francois, supra</i>) the court will elect to do so in this instance and consider the motion notwithstanding its untimeliness. In this action, the agreement requires arbitration of disputes between plaintiff and the dealer. (See Chung Decl., Ex. 3, Para. 30 [requiring arbitration of "any claim or dispute . . . between you and us"].) It could have expressly required plaintiff to arbitrate disputes with the manufacturer – but it does not.

		Defendant fails to show it may enforce the arbitration agreement, whether under equitable estoppel, third party beneficiary, agency, or any other doctrine. (See <i>Ford Motor Warranty Cases</i> [<i>Ochoa v. Ford Motor Co.</i>] (2023) 89 Cal.App.5th 1324, review granted [<i>Ochoa</i>]; see also <i>Montemayor v. Ford Motor Company</i> (2023) 92 Cal.App.5th 958 [<i>Montemayor</i>], and <i>Kielar v. Superior Court of Placer County</i> (2023) 94 Cal.App.5th 614 [<i>Kielar</i>].) In granting review of <i>Ochoa</i>, the Supreme Court held the Court of Appeal decision “may be cited, not only for its persuasive value, but also for the limited purpose of establishing the existence of a conflict in authority that would in turn allow trial courts to exercise discretion under <i>Auto Equity Sales, Inc. v. Superior Court</i> (1962) 57 Cal.2d 450, 456, 20 Cal.Rptr. 321, 369 P.2d 937, to choose between sides of any such conflict.” (<i>Ford Motor Warranty Cases</i>, July 19, 2023, order in Case S279969, 532 P.3d 270.) The court finds <i>Ochoa</i>, <i>Montemayor</i>, and <i>Kielar</i> to be more persuasive and better reasoned than <i>Felisilda v. FCA US LLC</i> (2020) 53 Cal.App.5th 486, upon which this court’s prior order compelling arbitration was based. Accordingly, the court reconsiders its prior 2-6-23 order compelling arbitration on its own motion, and now denies defendant Nissan North America, Inc.’s motion to compel arbitration. A Case Management Conference is scheduled for December 4, 2023 in C28 at 9:00 a.m. Plaintiff shall give notice.
55.	Kerns v. On Target Solutions, LLC 2019-01120703	Plaintiff Richard Kerns’ (plaintiff) motions to compel responses to his first set of special interrogatories and deem the matters in his first set of requests for admission admitted are GRANTED. (See Code Civ. Proc., §§ 2030.290, 2033.280.)

		Defendant On Target Solutions, LLC (OTS) is ORDERED to provide verified responses without objections to plaintiff's first set of special interrogatories, within 20 days of notice. The matters specified in plaintiff's second set of requests for admission to defendant OTS (ROA No. 313-Hernandez Decl. at Ex. 1) are hereby DEEMED ADMITTED. Sanctions in the total amount of \$2,572 (consisting of \$1,072 on the motion to compel responses to special interrogatories, and \$1,500 on the motion to deem admitted) are GRANTED in favor of plaintiff and against OTS, payable within 30 days of notice. Plaintiff shall give notice.
56.		
57.		
58.	Graham v. Wakim 2019-01054047	Plaintiff Lorcan Graham's Motion to Quash defendants' Subpoena for Business Records from Chapman University is DENIED. The only basis for this Motion is that the subpoena was untimely under CCP §2024.020. By stipulation of the parties the trial date was continued on June 28, 2023. Since the subpoena for records was served on Chapman University before the first trial date, the court exercise its discretion to permit the discovery to be completed. This ruling applies only to the records from Chapman University. No other discovery may be conducted except in conformance with the parties' Stipulation to continue the trial date. Moving party shall give notice.

59.	Flash Funding Services, Inc. v. Hellenic, Inc. 2022-01241189	Plaintiff Flash Funding Services, Inc.'s motions to compel defendant Manuel Katsivalis to (1) respond to special interrogatories, set one (ROA 78) and (2) respond to request for production, set one (ROA 74) are GRANTED. Defendant M. Katsivalis shall serve code compliant responses, without objection to the interrogatories and requests for production within 15 days of this order. Any responsive documents are also ordered produced within 15 days of this order. Plaintiff is awarded sanctions against defendant M. Katsivalis in the amount of \$980.00 for each motion, totaling \$1960. Sanctions are payable to plaintiff through its attorney within 30 days of this order. Plaintiff shall give notice.
60.	Best Wheels and Tire, LLC v. Liquid Metal Motorsports, Inc. 2022-01288714	The motion by cross-defendants Best Wheel and Tires, LLC [BWT], Ernie Alfonso, Robert Batchelor and Diamond Auto Industries Corporation [Diamond] for judgment on the pleadings as to the cross-complaint by Liquid Metal Motorsports, Inc. [LMM] and James Owen is GRANTED in part, with leave to amend, and DENIED in part. (Code Civ. Proc., § 438 [authorizing motion].) Moving parties' request for judicial notice is GRANTED in part, in that the court takes judicial notice of the fact that the documents were filed with the respective government agencies, but not of the truth of their contents. (<i>Stevens v. Superior Court</i> (1999) 75 Cal.App.4th 594, 607-608.) The motion is GRANTED as to cross-defendant Diamond entirely, on grounds of failure to state facts sufficient to constitute a cause of action. (Code Civ. Proc., § 438, subd. (c)(1)(B)(2).) The only basis of liability alleged as to this cross-defendant is as alter ego of cross-defendant BWT; however, alter ego is alleged as a conclusion only at ¶ 6, without sufficient supporting facts. (<i>Robbins v. Blecher</i> (1996) 52 Cal.App.4th 886, 892 [alter ego elements]; <i>Associated</i>

		<i>Vendors, Inc. v. Oakland Meat Co.</i> (1962) 210 Cal.App.2d 825, 839-840 [alter ego factors].) The motion is also GRANTED as to the 2nd and 7th causes of action for unjust enrichment, on grounds of failure to state facts sufficient to constitute a cause of action. (Code Civ. Proc., § 438, subd. (c)(1)(B)(2).) There is no cause of action for unjust enrichment in California. (<i>Melchior v. New Line Productions, Inc.</i> (2003) 106 Cal.App.4th 779, 794; <i>Levine v. Blue Shield of California</i> (2010) 189 Cal.App.4th 1117, 1138; <i>Durell v. Sharp Healthcare</i> (2010) 183 Cal.App.4th 1350, 1370.) The motion is further GRANTED as to the 4th and 9th causes of action for breach of the implied covenant of good faith and fair dealing. These causes of action are based on the same facts as the breach of contract claims, and seek the same damages. (Cross-complaint at ¶¶ 65-67, 98-100.) "If the allegations do not go beyond the statement of a mere contract breach and, relying on the same alleged acts, simply seek the same damages or other relief already claimed in a companion contract cause of action, they may be disregarded as superfluous as no additional claim is actually stated." (<i>Careau & Co. v. Security Pacific Business Credit, Inc.</i> (1990) 222 Cal.App.3d 1371, 1395; see also <i>Couch v. San Juan Unified School Dist.</i> (1995) 33 Cal.App.4th 1491, 1504 [duplicative claims subject to demurrer].) The remainder of the motion is DENIED. While moving parties contend that cross-complainant LMM is not a party to the alleged joint venture to "build the 'Wicked Wheels' brand together" (Cross-complaint, ¶ 20), and that the alleged joint venture is insufficiently alleged, the alleged joint venture is not the only agreement alleged by cross-complainants. (Cross-complaint, ¶ 24 [alleging a "Mold Agreement"], ¶ 29 [alleging an oral agreement whereby "BWT, Alfonso, and Batchelor agreed to pay Liquid Metal the total costs for PDW to manufacture the 'Wicked Wheels' branded alloy wheels, plus Twelve and 00/100 Dollars (\$12.00) per wheel, in addition to ocean freight, taxes, import duties, and tariffs"].) Thus, whether the joint venture is sufficiently alleged, as to LMM or generally, would not dispose of the challenged claims in their entirety. (<i>Fremont Indemnity Co. v. Fremont General Corp.</i> (2007) 148 Cal.App.4th 97, 119 ["A demurrer must
--	--	---

		dispose of an entire cause of action to be sustained”]; <i>Quelimane Co. v. Stewart Title Guaranty Co.</i> (1998) 19 Cal.4th 26, 38 [complaint is good against a general demurrer so long as some valid cause of action is alleged]; see also <i>Cloud v. Northrop Grumman Corp.</i> (1998) 67 Cal.App.4th 995, 999 [rules governing demurrers applicable to motions for judgment on the pleadings].) Similarly, as to the 1st and 6th causes of action for breach of contract, even if the alleged loaned funds and/or any alleged obligation to purchase inventory held in China required a written contract (Civ. Code, § 1624, subd. (a)(7); Comm. Code, § 2201, subd. (1)), they are not the only obligations alleged as grounds for the breach of contract claims. Further, there are no allegations that cross-complainants are “engaged in the business of lending or arranging for the lending of money or extending credit.” (Civ. Code, § 1624, subd. (a)(7).) Likewise, while moving parties contend that the 1st and 6th causes of action are time-barred because cross-complainants were on inquiry notice of the financial condition of the joint venture by virtue of their rights and obligations as members of the joint venture, the joint venture agreement “to build the Wicked Wheels brand” (§ 20) is not the only verbal agreement alleged. Further, any timeliness defect “must clearly and affirmatively appear on the face of the complaint; it is not enough that the complaint shows that the action may be barred.” (<i>Committee for Green Foothills v. Santa Clara County Bd. of Supervisors</i> (2010) 48 Cal.4th 32, 42.) Here, the facts alleged do not “clearly and affirmatively” show that cross-complainants were on inquiry notice of alleged breach of the joint venture agreement. Cross-complainants are granted 30 days leave to amend. (Code Civ. Proc., § 438, subd. (h)(2).) As to the unjust enrichment claims, leave to amend is limited to alleging restitution as a remedy in connection with another, valid cause of action. Moving parties shall give notice.
--	--	---

[illegible]